

PSLA. No.6266/2019

Sajjad Ashraf

The State, etc

C.M.No.01-2019 and Main Case.

21.09.2021.

Nemo.

Rana Ahsan Aziz, DPG.

The petitioner-Sajjad Ashraf has filed instant petition under Section 417(2) of Cr.P.C., and prayed for setting aside of impugned judgment dated 27-10-2018, passed by the learned Additional District Judge/Judge, Gas Utility Court, Faisalabad whereby, the respondents No.2 and 3- Tariq and Muhammad Arshad have been acquitted of the charge in private complaint, under Section 6(1) of Gas (Theft Control and Recovery, Act-2016, read with Section 200 Cr.P.C.

2. The petitioner moved an application under Section 5 of the limitation Act, 1908 for condonation of delay in filing the petition for special leave to appeal against acquittal of respondents No. 2 and 3. The petition is barred by time by ninety seven (97) days.

3. Along with the instant Criminal Appeal, the applicant has filed an application under Section 5 of Limitation Act, 1908 for condonation of delay in filing the appeal, as the same is barred by time. From record, it reflects that the learned Special Judge, Anti-Corruption, Lahore vide judgment dated 19-11-2016 acquitted the respondents No.2 and 3, and the instant petition was filed before this Court on 27-09-2017 with the delay of ninety-seven (97) days.

4. Through an application the applicant has taken plea of "that due to lock down of District Courts from 27.11.2018 to 22.01.2019 the applicant could not apply/obtain the certified copies of the impugned order. That when on 22.01.2018 the District courts opened, the petitioner instantly without any delay applied for certified copies of the impugned judgment on 24.01.2019 which is prepared on 28.01.2019 and petitioner received the same on 28.01.2019. If this above mentioned period/time for the preparation of certified copied is excluded this appeal is within time" in an application for condonation of delay. From the record, it appeared that lockdown was due to lawyers strike and allowing such application of condonation of delay on ground of lawyers' strike abstaining deliberately from the court work or going on strike boycotting the courts' working is not only against the spirit of public policy, but is such an act of contempt of court that should not be respected in any way. Allowing such application on ground of lawyers' strike would amount to recognizing the lawyers' strike as sufficient ground for not appearing in the court. This situation cannot be accepted in public interest as well as in interest of justice. It has been experienced that even during period of alleged strikes the petitions, bail applications etc are filed in offices. Strikes do not stop those litigants from moving their petitions and copy forms etc who are watchful of their rights. Besides the applicant could apply for certified copies between the date of judgment dated 27.10.2018 and before the date i.e. 29.11.2018 of lockdown. But the applicant had not applied for a certified copy of the judgment within thirty two (32) days.

5. In the light of the above discussion I am of the view that, if there had been any strike of lawyers, it was

illegal and unethical. Such acts cannot be accepted as sufficient cause for condoning the delay in filing petition, which has effect on legal rights of respondents No. 2 and 3 accrued to them due to non filing of petition within period of limitation.

6. Thus, this Court is of the view that the petition cannot proceed further having being filed beyond the period of limitation prescribed under the law. In view whereof, the petition is also **dismissed.**

(Aalia Neelum)
Judge

Approved for reporting.

Judge

A.S.Khan